ORDINANCE NO. 2026-04

AN ORDINANCE OF CITY OF CORONADO, CALIFORNIA, AMENDING SECTION 86.56.048 (EXCEPTION – BUILDING HEIGHT LIMITS FOR MULTIPLE-FAMILY AND NONRESIDENTIAL DEVELOPMENT IN THE R-4 MULTIPLE-FAMILY RESIDENTIAL ZONE) OF CHAPTER 86.56 (SPECIAL PROVISIONS) OF TITLE 86 (ZONING) OF THE CORONADO MUNICIPAL CODE AND SECTION B.2 (HEIGHT REGULATIONS) OF PART B (LAND USES) OF CHAPTER V (R-4 MULTIPLE-FAMILY RESIDENTIAL ZONE) OF THE ORANGE AVENUE CORRIDOR SPECIFIC PLAN

WHEREAS, the R-4 Multiple-Family Residential Zone applies to designated areas within the Orange Avenue Corridor Specific Plan ("R-4 Zone"); and

WHEREAS, the total area of R-4 zoned properties within the City is approximately 14.8 acres; and

WHEREAS, in connection with its Sixth Cycle Housing Element Update ("Housing Element"), the State Department of Housing and Community Development ("HCD") took the position that the R-4 Zone's three-story, 35-foot height limit would constitute a constraint on development seeking to obtain the permitted density of 40 dwelling units per acre; and

WHEREAS, per HCD's guidance, a zoning district must allow at least one story and 10 feet of height for every 10 dwelling units per acre of density allowed; and

WHEREAS, in other words, the R-4 Zone's density of 40 dwelling units per acre must correspond with a height limit no lower than 4 stories and 40 feet; HCD has expressed that 42 feet is preferred to avoid constraining the density; and

WHEREAS, at an election on June 6, 1972, the City's voters approved "Proposition R" which capped the height of "multiple-family developments" in the R-4 Zone at 3 stories (maximum height of 40 feet) ("Proposition R"). Because Proposition R was enacted by voters, such height limits can only be changed by state laws that preempt its provisions or by a vote of the people; and

WHEREAS, to reduce potential development constraints, HCD required the City's Housing Element to include Program H-1.F, which lists a suite of actions the City must take to remain in compliance with state housing law; and

WHEREAS, among the actions in the Housing Element is a commitment to put a new measure on the ballot that would increase height within the R-4 Zone to a maximum of 4 stories and 42 feet for all properties subject to this zoning designation; and

WHEREAS, properties within the R-4 Zone are identified as housing opportunity sites in the Housing Element and are already eligible for this height level; and

WHEREAS, accordingly, to comply with state housing law and implement Program H-1.F in the Housing Element, this Ordinance would amend the Zoning Ordinance and the Orange Avenue Corridor Specific Plan to increase allowable heights within the R-4 Zone as provided herein.

NOW THEREFORE, subject to approval by an affirmative, simple majority vote of the people as required by law, the People of the City of Coronado do ordain as follows:

Section 1. **Recitals Incorporated**. The recitals set forth above are true and correct and incorporated herein by reference.

Section 2. **Zone Code Amendment**. Section 86.56.048 (Exception – Building height limits for multiple-family and nonresidential development in the R-4 Multiple-Family Residential Zone) of Chapter 86.56 (Special Provisions) of Title 86 (Zoning) of the Coronado Municipal Code is hereby amended as provided in Exhibit A, which is attached hereto and incorporated herein by this reference.

Section 3. **Specific Plan Amendment**. Section B.2 (Height Regulations) of Part B (Land Uses) of Chapter V (R-4 Multiple-Family Residential Zone) of the Orange Avenue Corridor Specific Plan is hereby amended as provided in Exhibit B, which is attached hereto and incorporated herein by this reference.

Section 4. **Environmental Review**. The adoption of this Ordinance is exempt from the California Environmental Quality Act ("CEQA") pursuant to California Public Resources Code Section 21080.085 relating to zoning amendments that implement a schedule of actions contained in a state-approved housing element. HCD certified the City's Housing Element, and the Housing Element includes Program H-1.F that, among other actions, calls for the City to amend the regulations relating to the R-4 Multiple-Family Residential Zone to increase allowable heights as provided by this Ordinance. Therefore, this Ordinance is statutorily exempt from CEQA, and no further review is required.

Section 5. **Implementation**. This Ordinance authorizes City of Coronado officers and employees to take all steps necessary to implement this Ordinance in the manner required by law.

Section 6. **City Council Authority to Amend**. Pursuant to Elections Code Section 9217, the City Council has the right and authority to amend this Ordinance to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council) except that any amendments to the height requirements provided in Exhibits A and B shall not be effective until approved by the City's voters pursuant to Proposition R.

Section 7. **Adoption**. Pursuant to Elections Code Section 9217, this Ordinance shall be considered as adopted upon the date that the vote by the electorate of the City of Coronado is declared by the City Council, and shall become effective ten (10) days after that date.

Section 8. **Severability**. If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this Ordinance, or its application to any person or circumstance, is for any reason held to be invalid or unenforceable, such invalidity or unenforceability shall not affect the validity or enforceability of the remaining sections, subsections, subdivisions, paragraphs,

sentences, clauses or phrases of this Ordinance, or its application to any other person or circumstance. The City Council declares that it would have adopted each section, subsection, subdivision, paragraph, sentence, clause, or phrase hereof, irrespective of the fact that any one or more other sections, subsections, subdivisions, paragraphs, sentences, clauses, or phrases hereof be declared invalid or unenforceable.

Section 9. **Certification**. The City Clerk shall certify to the adoption of this Ordinance by the voters, and shall cause it to be published as required by law.

It is hereby certified that this Ordinance was duly adopted by the voters at the November 3, 2026 election and took effect 10 days following adoption of a resolution declaring the results of the election at a meeting of the City Council of the City of Coronado held on _____: by the following vote:

AYES:
NAYS:
ABSTAIN:
ABSENT:

_____
JOHN D. DUNCAN, Mayor of the
City of Coronado, California

ATTEST:

_____
KELSEA HOLIAN, City Clerk of the
City of Coronado, California

Exhibit A

ZONE CODE AMENDMENT

Section 86.56.048 (Exception – Building Height limits for multiple-family and nonresidential development in the R-4 Multiple-Family Residential Zone) of Chapter 86.56 (Special Provisions) of Title 86 (Zoning) of the Coronado Municipal Code is hereby amended as follows (**bold underline** represents new text and ~~strikethrough~~ represents deleted text):

Section 86.56.048 Exception – Building height limits for multiple-family and nonresidential development in the R-4 Multiple-Family Residential Zone.

A. For multiple-family and nonresidential development in the R-4 Multiple-Family Residential Zone with a flat roof and parapet, mansard, or sloped roof less than 2:12, cable railing systems that are 90 percent transparent may extend two feet beyond the allowable building height.

B. For ~~multiple-family and~~ nonresidential development in the R-4 Multiple-Family Residential Zone, a maximum of 20 percent of allowable lot coverage (building footprint) can be increased to 40 feet in building height if the following criteria are met:

1. The roof increased beyond 35 feet has a pitch equal to or greater than 2:12.

2. The building volume of the main building adjoining or adjacent to the building bulk of the structure increased beyond 35 feet is reduced in a proportionate fashion so that the net result is that the total building volume of all structures is not increased.

3. The increased building height shall be compatible with adjoining properties as determined by the Design Review Commission.

C. For multiple-family development in the R-4 Multiple-Family Residential Zone, a maximum building height of four stories and not more than 42 feet shall apply.

Exhibit B

SPECIFIC PLAN AMENDMENT

Section B.2 (Height Regulations) of Part B (Land Uses) of Chapter V (R-4 Multiple-Family Residential Zone) of the Orange Avenue Corridor Specific Plan is hereby amended as follows (**bold underline** represents new text and ~~strikethrough~~ represents deleted text):

Section B.2 Height Regulations

a. ~~Multiple family dwellings or nonresidential~~ **Nonresidential** main buildings shall not contain more than three stories and shall comply with the following: (Ord. 1981)

1. Main buildings with a flat roof (inclusive of parapets and false mansards), or sloped roof of less than 2:12 shall not exceed a maximum of 33’ in height; (Ord. 1981, 2006)

2. Main buildings with a sloped roof of 2:12 and greater shall not exceed a maximum 35' in height; (Ord. 1981, 2006)

b. Multiple family dwellings shall not contain more than four stories and shall comply with the following:

1. Main buildings with a flat roof (inclusive of parapets and false mansards), or sloped roof of less than 2:12 shall not exceed a maximum of 40’ in height;

2. Main buildings with a sloped roof of 2:12 and greater shall not exceed a maximum 42' in height;

~~b.~~ **c.** Single-family dwellings or duplexes. Main buildings shall not contain more than two stories and shall comply with the following: (Ord. 1981)

1. Main buildings with a flat, false mansard, or sloped roof with a pitch of less than 3:12 shall not exceed a maximum of 22 feet in height except for parapet walls which shall not exceed 25 feet in height;

2. Main buildings with a sloped roof of 3:12 and greater but less than 6:12 shall not exceed a maximum of 27 feet, six inches in height;

3. Main buildings with a sloped roof of 6:12 or greater shall not exceed a maximum of 30 feet in height. That portion of the roof exceeding 27 feet, six inches shall be limited to a maximum of 15 percent of the entire building roof plan area.

~~c.~~ **d.** Accessory buildings shall not contain more than one story and shall comply with the following: (Ord. 1981)

1. Accessory buildings with a flat, false mansard, or sloped roof with a pitch of less than 3:12 shall not exceed a maximum of 11 feet in height except for parapet walls which shall not exceed 14 feet in height;

2. Accessory buildings with a sloped roof of 3:12 and greater but less than 6:12 shall not exceed a maximum of 14 feet, four inches in height;